

NATIONAL AERONAUTICS AND SPACE ADMINISTRATION
Goddard Space Flight Center (GSFC)
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
(JOFOC)
For Electrical Systems Engineering Services (ESES III) 80GSFC18C0120

1. Federal Acquisition Regulation (FAR) 6.303-2(b)(1) – Identification of the agency and the contracting activity, and specific identification of the document as a “Justification for other than full and open competition.”

This document is a justification for other than full and open competition prepared by National Aeronautics and Space Administration (NASA) Goddard Space Flight Center (GSFC).

The procuring agency is the National Aeronautics and Space Administration (NASA) and the contracting activity is GSFC.

2. FAR 6.303-2(b)(2) – The nature and/or description of the action being approved:

This justification provides the rationale for contracting by other than full and open competition to award an extension and increase the maximum ordering value by up to \$75.6M to contract number 80GSFC18C0120 with Science Systems and Applications, Inc. (SSAI). The ESES III contract currently expires on December 8, 2024. Award of the ESES IV contract is currently anticipated for February 2025, followed by a 60- day phase-in period resulting in an effective date of April 9, 2025.

However, On May 21, 2024, the Government received a size standard protest, in which the determination is going through the appeals process. As such, the Government is awaiting the finalized decision from the Small Business Administration, and this has subsequently caused additional delays in the award. The contract extension period is based on the need to cover the award of the follow-on contract, due to delays in ESES IV award including the protest, and covers the transition process to the follow-on contract (inclusive of the 60-day phase-in period). The options are being requested if additional delays are encountered. As a result of this delay, an extension to the contract’s period of performance and increase to the maximum ordering value is being requested as follows:

Base Period	December 9, 2024 – April 8, 2025	Four (4) months	\$25.2M
Option Period 1	April 9, 2025 – August 8, 2025	Four (4) months	\$25.2M
Option Period 2	August 9, 2025 – December 8, 2025	Four (4) months	\$25.2M

This action, inclusive of the options, will potentially extend the current contract period of performance by up to one (1) year and increase the maximum ordering value by a total of up to \$75.6M. The options will only be exercised if additional time is needed to make the award of ESES IV. This will allow for continued performance and continuation of mission critical services under the ESES III contract.

3. FAR 6.303-2(b)(3) – A description of the supplies or services required, to meet the Agency’s needs (including the estimated value):

The principal purpose of this contract is to provide electrical/electronic engineering support services and related work to the Electrical Engineering Division (EED), the Instrument Systems and Technology Division (ISTD), the Software Engineering Division (SED), the Mechanical Systems Division (MSD), the Mission Engineering and Systems Analysis Division (MESA) related organizations and other NASA Centers and locations specified in task orders, for the study, design, development, fabrication, integration, testing, verification, and operations of space flight, airborne, and ground system hardware and software, including development and validation of new technologies to enable future space and science missions. NASA GSFC is proposing to increase the maximum ordering value by an amount of \$75.6M and extend the current base contract effective ordering period as shown in the table above which will allow for new and continued performance through December 8, 2025 (if necessary).

The contract extension period and increase in the maximum ordering value is based on the need to cover mission critical multidisciplinary work requirements under the ESES III contract during the award process of the follow-on contract, Electrical Systems Engineering Services (ESES) IV. The base and option periods allow for continued performance and continuation of mission critical services under the ESES III contract, the completion of the Source Evaluation Board (SEB) evaluation process and associated protest, award of the ESES III contract and completion of the 60-day phase-in process. Most of the current ESES III task orders are expected to transition to the ESES IV contract and are expected to maintain or increase their current levels of support for the next year. As a result of the delays experienced with the award the ESES IV contract, it is necessary to extend the ESES III contract’s period of performance beyond December 8, 2024, to allow for uninterrupted support for most of the task’s orders currently on ESES III. More specifically, this ESES III contract extension allows for the continuation of critical NASA missions such as Laser Interferometer Space Antenna (LISA), Plankton, Aerosol, Cloud, ocean Ecosystem (PACE), Ocean Color Instrument (OCI), Roman Space Telescope (RST), GeoSpace Dynamic Constellation (GDC), and Deep Atmosphere Venus Investigation of Noble gases, Chemistry, and Imaging (DAVINCI), to name a few. For example, the PACE Mission was launched in February 2024 and is continuing to operate and collect data. The personnel and support from the ESES III contract are needed for RST and LISA to meet critical milestones. For example, the RST project is undergoing subsystems environmental testing as the projects are preparing for their system level Integration and Testing (I&T). The LISA project seeks to advance the Technology Readiness Level (TRL) from 4 to 6 for the laser developments and

ESES III supports this endeavor. Also, the GDC team is in the process of building an engineering development unit for the Power System Electronics. These milestones are directly on the critical path for RST, LISA, and GDC missions' success. A potential contractor change at this stage would highly disrupt the ability to deliver the work on schedule because it would require a steep learning curve if new personnel were to be brought on board. The administrative costs for both the government and a new contractor would be considerable. The projects are at critical points where they need to execute their schedules to keep their deliverables and commitments to the agency.

The multi-discipline nature of this contract's support, and the mission-critical support requirements often demand specialized engineering manpower and procurements of specialized flight hardware that require engineering expertise to properly execute. The ESES III contract must be able to react quickly and readily provide uninterrupted support for these high priority projects such as RST and LISA. Project requirements depend upon the specialized skills and flexibility of the multidiscipline engineering services. The ESES III contract extension will allow for the needed continuity of services for these projects as they are in critical stages while allowing for any unexpected delays that these programs may experience.

Without an extension to the ESES III contract's period of performance, NASA GSFC would be precluded from continuing current ongoing support requirements and issuing further new short-term task orders for services under this contract.

4. FAR 6.303-2(b)(4) – An identification of the statutory authority permitting other than full and open competition:

The statutory authority permitting other than full and open competition is 10 U.S.C. 2304(c)(1), as implemented by FAR 6.302- (1) Only one responsible source and no other supplies or services will satisfy agency requirements (10 U.S.C. 2304(c)(1)).

5. FAR 6.303-2(b)(5) – A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited:

The rationale supporting the use of 10 U.S.C. 2304(c)(1) is that a sole-source award to Science Systems and Applications, Inc. (SSAI) is necessary due to the nature of the work to be performed, the short duration of the extension period and because NASA currently has competitive follow-on procurement underway. As the incumbent contractor, SSAI is uniquely qualified to provide services required under the interim period. Services are needed for a short period until the 5-year follow-on contract (ESES IV) is awarded. Furthermore, SSAI has the ability to continue performing services without requiring a startup period and/or the normal learning curve typically encountered by new incoming contractors. Should these services be interrupted, NASA will be unable to perform and fulfill critical multidiscipline engineering support and related services that are required by NASA's RST, LISA, GDC, DAVINCI, and DragonFly missions to remain on schedule. Furthermore, any interruption in services would cause major impacts to JWST and PACE,

both currently undergoing on-orbit operations following their launches which occurred in 2021 and 2024, respectively. In determining a solution that represents the least amount of risk to the government, stability and continuity were considered as critical factors. SSAI is considered the only contractor that can meet GSFC's needs, given the remaining period of the contract. These services are absolutely required to ensure the success of the following critical events:

- a. Continuing to support the on-orbit operations of PACE & JWST missions.
- b. Finalizing RST, I&T Test Campaign of the flight Focal Plane Electronics (FPE) and the Command and Data Handling Unit (C&DH)
- c. Continuing to support the laser development, laser and electro-optic component characterization and assembly for the LISA project.

The unique skills required to support such critical missions and milestones cannot be readily replaced without a steep learning curve. The highly technical and varied activities associated with the ESES III contract require a very specialized set of skills, and any vendor performing follow-on services would require a transition period and a significant outlay of funds to overcome. The current timeline is not sufficient for the required transition. The incumbent already possesses the necessary skills required for uninterrupted performance. Therefore, NASA believes that the incumbent contractor, SSAI, is the only contractor capable of providing the necessary and specific skills, experience and expertise required for the ordering period extension.

If NASA attempts to procure these services from any other source in lieu of extending the contract, the combination of delay due to the competitive process and the time required to transition a new management team to coordinate staffing levels, schedules, and to become familiar with work requirements and systems would cause unacceptable delays in fulfilling NASA's mission. Based on the time and costs that would be involved in procuring and phasing in another contract, SSAI is the only entity possessing the detailed knowledge necessary to provide seamless continuation of the services provided under the ESES III contract without risk of an unacceptable interruption or delay of critical services.

In addition, only allowing a short contract extension will avoid substantial duplication of cost to the Government that would need to be incurred if another contractor was brought onboard for this timeframe. This would be significant and would include duplication of phase-in costs that will also be required for the follow-on award. The duplicative phase-in costs of putting in place a short-term interim contract would not reasonably be expected to be recovered through competition. The duplicative costs would include the need to review contractor submitted plans and documents, such as Information Technology (IT) Security Plan, Safety and Health Plan, among others, for this period which will be completed for the follow-on that is awaiting award. In addition, the Government would incur significant additional administrative costs putting in place a short-term contract through the evaluation process, which could not reasonably be expected to be recovered through competition. This is unacceptable to the Government given that the duration of the performance for this interim contract extension could be as little as four (4) months

and no more than one (1) year, and that the costs are not expected to be recovered through a competitive acquisition. In order for the Government to avoid substantial duplication of costs and to avoid unacceptable delay in performance of critical requirements, the base and option periods are required. By extending ESES III via four-month options, NASA is limiting competition to the lowest level. Options will only be executed if required based on continued protest activity and decision.

6. FAR 6.303-2(b)(6) – A description of the efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies:

A notice to the Government Point of Entry (GPE) website (Sam.gov) was published on October 10, 2024, in accordance with FAR Subpart 5.2. This posting informed potential sources of NASA's intent to award this sole-source extension to SSAI. The results of this synopsis are summarized in Section 10 below.

7. FAR 6.303-2(b)(7) – A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable:

The Contracting Officer's signature on this document indicates that the Contracting Officer has determined that the anticipated cost to the government will be fair and reasonable. The Contractor shall be required to submit a proposal to be evaluated and negotiated by the Government. Prior to execution of the contractual instrument, a proposal analysis will be performed to ensure that the final agreed-to price for the contract is fair and reasonable. The proposed costs will be evaluated by the Contracting Officer's Representative and the Contracting Officer to determine that the direct labor rates, direct labor hours, skill mix, other direct costs, indirect costs, and fee(s) are fair and reasonable. This may also include support from external organizations such as the Defense Contract Audit Agency, as needed.

8. FAR 6.303-2(b)(8) – Description of the market research conducted, and the results, or a statement of the reasons market research was not conducted:

Given the urgency of the need, and the immensity and complexity of the requirement, strategic market research was conducted continuously throughout the acquisition process. Additionally, market research for similar ongoing requirements were reviewed. As such, per the CORs knowledge and experience, there are no other existing entities that possess the required knowledge and expertise necessary to perform these services within the limited time frame. Due to this limited time frame for implementing the contract extension, NASA GSFC does not believe that any alternate sources can take on full contract responsibility without risk of an unacceptable delay to critical milestones. The Government would unnecessarily incur significant additional cost if another contractor were to perform this effort. A competitive ESES IV contract is expected to be awarded by February 2025. An assessment of other existing current contracts was made with the conclusion that no viable

contract vehicles existed that could reasonably support the requirement. The requirement for ESES III continuity of operations and the need to meet critical mission milestones for flight project missions leaves no feasible alternative except to extend the period of performance of the ESES III contract.

9. FAR 6.303-2(b)(9) – Any other facts supporting the use of other than full and open competition:

Detailed knowledge of the ESES III contract greatly aids the contractor's ability to manage the tasks effectively and efficiently in a timely manner during the remaining duration of the contract period of performance. This will benefit the Government through lower technical risk. As previously stated, it is anticipated that an award to any other source for the remainder of the contract duration would result in unacceptable delays in fulfilling NASA GSFC's critical requirements and would duplicative costs.

10. FAR 6.303-2(b)(10) – A listing of the sources, if any, that expressed an interest in writing in the acquisition:

A notice of NASA's intent to award this sole-source action was synopsisized on the GPE website (Sam.gov) per FAR Subpart 5.2 (See Section 6 above). The synopsis was posted on October 10, 2024, and closed on October 25, 2024. The Government received zero (0) responses.

11. FAR 6.303-2(b)(11) – A statement of actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required:

The Agency will continue to examine the market in the future for alternative solutions or new sources before executing any subsequent acquisitions for the same requirements. The Government is in the process of conducting a competition for the follow-on acquisition.